

GATEWAY: NEWS

Will this Pierce County city get license plate cameras? Privacy is part of the debate

By **Julia Park**

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Lakewood has had 31 Flock Safety automated license plate readers active across the city since early October, which Lakewood police officials say will assist authorities in catching stolen vehicles and solving other crimes. The cameras were strategically placed at city entry and exit points. Lakewood is one of at least three cities or towns in Pierce County to adopt the technology thus far. By Brian Hayes

The city of Gig Harbor is considering installing ten stationary cameras to take pictures of vehicles' license plates for law enforcement purposes, sparking a discussion of whether data privacy and surveillance concerns outweigh the potential boost to crime investigations.

The Gig Harbor City Council will take public comment at their [5:30 p.m. meeting Monday, March 24](#), before voting on whether to approve a contract to install the cameras provided by a [private company called Flock Safety](#), which operates their technology in cities nationwide.

If the item passes, the city will join other Pierce County jurisdictions including Bonney Lake, Eatonville, Lakewood, Puyallup and Sumner in using [automated license plate readers, or ALPRs](#), to identify vehicles passing through their area and help solve crimes. [The Pierce County Sheriff's Office was also considering the technology in 2023](#), The News Tribune reported. The Tacoma Police Department deployed ALPR technology as of Feb. 10, but it's not clear [from their website](#) if they use Flock or another service.

The use of ALPR (also called LPR) technology is growing statewide, according to Gig Harbor Police Chief Kelly Busey. There are at least 75 law enforcement agencies in Washington state that use Flock's cameras, plus other commercial and private customers like big box stores and neighborhood associations, he told The News Tribune via phone Thursday.

In Gig Harbor, the city would install the cameras on city infrastructure at points of entry and exit to the city. Though he said police haven't decided the

exact locations yet, he said they'd likely go up on freeway on-ramps and off-ramps and at the intersection of Peacock Hill Avenue and Borgen Boulevard.

Busey said he started exploring automated license plate readers for Gig Harbor about a year ago, sensing that the city council might be open to the idea after a council member asked him about the police department's use of technology to fight crime.

How would the cameras work?

The cameras would generally face one direction and take photos of vehicles' back or front end, depending on which way they faced, according to Busey.

The Flock website says each device captures vehicles' color, make and model, license plates and license plate type and any bumper stickers, along with a timestamp and location. The images won't capture drivers or occupants, according to Busey.

The cameras can't detect speed, according to the [Flock website](#). A [list of FAQs](#) from the city says the cameras won't enforce traffic laws and can't be used to issue tickets.

Flock encrypts and stores the data temporarily on a secure cloud server through Amazon Web Services for a default retention period of 30 days, before it's auto-deleted. The company [pledges on its website](#) not to sell or share the data with third parties, and states that customers "own 100% of the data and footage collected with (their) cameras."

Law enforcement officers would be able to query the database for a specific vehicle matching a description — such as a gray Jeep — after a crime occurs to figure out where it might be, and get a real-time alert when a suspect vehicle passes an ALPR location.

“This is kind of what we call a force multiplier,” Busey said. “So it’s kind of an extension of our eyes.”

To make a query, officers have to provide a reason for their search and a case number, according to a [list of FAQs](#) from the city. The queries would be logged and feed a public-facing webpage similar to one set up for the city of [Sumner](#), which notes the number of searches in the last 30 days and different agencies that have access to the data.

ALPRs in the city could have helped the police department more quickly catch a serial bank robber, who first hit a Key Bank in Gig Harbor and then several others in the Puget Sound area, according to Busey. The police department worked with other local agencies that had access to ALPR data to locate him. The technology could have also helped police locate [repeat purse snatchers](#) and a missing person, according to the city’s FAQ page.

He emphasized that the police department already uses investigative techniques to locate suspects, like reviewing people’s cell phone and bank records when they have a search warrant to do so.

“Flock is just a less invasive and probably more immediately available technology,” he said. “... We’re not tracking anybody. We’re not ... trying to develop a pattern of where somebody might go during the day.”

Privacy concerns

At the March 13 council study session, some council members questioned Flock’s ability to protect citizens’ data from federal agencies and other third parties, outside of law enforcement.

“I trust our Gig Harbor Police Department to do the right thing,” council member Roger Henderson said when reached via phone Friday afternoon. “That’s not my concern. It’s just potential misuse from other agencies for whatever reason.”

He said he wants to see city protocols in place first to address the risks of letting the data fall into the wrong hands, such as perpetrators of domestic violence or unelected officials at higher levels of government.

Council member Em Stone told The News Tribune via phone Thursday that she's feeling "a little bit torn" ahead of the vote Monday. She's also thinking about the cameras in light of the confidentiality and privacy necessary to keep domestic violence survivors safe, coming from a previous job as public policy director at the [Washington State Coalition Against Domestic Violence](#).

"While the risk is low, it just takes one," Stone said. "And not to say I want to make all my decisions assuming bad actors, but I do think it's worth it for me to have conversations and ask the questions around what we can do legally to better protect vulnerable populations."

Council member Jeni Woock told The News Tribune she's worried the "rule of law" won't be upheld to protect peoples' data from the federal government, if it was requested.

"If you haven't committed a crime, I'm not in favor of people being tracked, and I'm not in favor of our community playing perhaps an innocent part in that," Woock said.

Asked about the city's ability to protect the data, Busey told The News Tribune that the city would only release the data to another police agency "if they can show a valid violation of Washington state law." If a federal agency wanted to access the data, the city "would only comply with a court order signed by a federal judge." Up until now, Flock has received no such inquiries from federal agencies, he told The News Tribune.

According to a list of [Terms and Conditions](#) on the Flock website, the company says it "may access, use, preseve and/or disclose the footage to law enforcement authorities, government officials, and/or third parties, if legally required to do so or if Flock has a good faith belief that such access, use,

preservation or disclosure is reasonably necessary to comply with a legal process, enforce this agreement, or detect, prevent or otherwise address security, privacy, fraud or technical issues, or emergency situations.”

The company’s Terms & Conditions are meant to ensure that Flock complies with the law, while its customers retain full ownership of the data collected on license plate reader devices, according to Flock spokesperson Holly Beilin.

Asked about how the company protects the data from bad actors, such as stalkers or domestic violence perpetrators, Beilin wrote in an email Sunday evening that every search of the platform requires the user to input a search reason, which is recorded indefinitely in an audit report that can be made public through the optional, free Transparency Portal that Flock offers law enforcement agencies.

She also wrote that “if we were made aware that any user had conducted illegal activity through the Flock platform, they would immediately be removed.”

“The 30 day default retention period ensures that agencies have sufficient time to retain the objective, actionable evidence they need to solve crime, while also ensuring the protection of personal privacy and civil liberties,” she wrote.

Cost of the cameras

In May 2024, the police department applied for a grant from the [Washington Auto Theft Prevention Authority](#) and received \$33,000 in July 2024 to install the technology and pay for the first year of operation. WATPA awarded about \$2.3 million total to agencies across the state for automated license plate reader technology that year, according to Executive Director Bryan Jeter.

The Gig Harbor Police Department has until June 30, 2025 to use the money, according to Busey.

The city would have to pay to operate the cameras after that, at \$30,000 each year for 10 cameras or \$3,000 per camera, a Flock representative said at the city council study session March 13. The city would evaluate the use of the technology after the first year before deciding whether or not to keep funding it, according to Busey.

[WIRED reported](#) that automated license plate readers first appeared at police departments in the 2000s. The cameras have since been adopted by many agencies across the United States, including nearly 90% of sheriffs' offices with at least 500 sworn deputies, according to a [2020 survey from the Bureau of Justice Statistics](#). Among sheriffs' offices with 250-499 sworn deputies, a category that includes the [Pierce County Sheriff's Office](#), about 78% used automated license plate readers regularly.

Editor's note: This story has been updated with comments from a Flock Safety spokesperson.

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